

24SMCV01402 24SMCV01402

County: los-angeles

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Department: 207

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TENTATIVE RULING

DEPARTMENT

207

HEARING DATE

August
25, 2026

CASE NUMBER

24SMCV01402

MOTION

Motion
for Attorneys' Fees

MOVING PARTIES

Plaintiffs Juliana Hernandez and Victor
Hernandez

OPPOSING PARTY

Defendant

American Honda Motor Co., Inc.

MOTION

This case arises from allegations that manufacturer Defendant American Honda Motor Company, Inc. ("Defendant" or "Honda") sold to Plaintiffs Juliana Hernandez and Victor Hernandez ("Plaintiffs") a defective 2022 Acura RDX vehicle and failed to repair the defects or replace the vehicle, in violation of the Song-Beverly Act. On March 25, 2024, Plaintiffs filed suit against Defendant, seeking restitution and damages for Defendant's alleged violation of the Song-Beverly Act.

A

Notice of Plaintiffs' Acceptance of Defendant's Section 998 Offer to Compromise was filed on May 12, 2026.

On

June 18, 2026, Plaintiffs filed a memorandum of costs seeking \$16,249.44 in costs.

Plaintiffs

now move to recover \$129,013.80 in attorneys' fees pursuant to Civil Code section 1794, subdivision (d), representing \$107,511.50 in attorneys' fees and a 1.2 lodestar multiplier of \$21,502.30.

Defendant opposes the motion and Plaintiffs reply.

EVIDENTIARY OBJECTIONS

The

Court rules as follows with respect to Honda's evidentiary objections to the Sanchez Declaration:

1. Overruled

2. Overruled

The Court rules as follows

with respect to Honda's evidentiary objections to the Kaufman Declaration:

1. Overruled

2. Overruled

3. Sustained as to paragraph 12; Overruled as to paragraph 13.

The Court rules as follows

with respect to Plaintiffs' evidentiary objections to the Michel Declaration:

1. Overruled

2. Overruled

3. Overruled

4. Overruled

5. Overruled

6. Overruled

7. Overruled

8. Overruled

9. Overruled

ANALYSIS

Code of Civil Procedure

section 1033.5, which outlines recoverable costs to a prevailing party under Code of Civil Procedure section 1032, permits the recovery of attorneys' fees when authorized by contract, statute, or law.

(Code Civ. Proc., § 1033.5, subd. (a)(10).)

Civil Code section 1794,

subdivision (d) provides: "If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have

been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.”

Defendant does not contest that Plaintiff is entitled to recover reasonable attorneys’ fees, costs, and expenses under the Song-Beverly Act. Instead, Defendant requests a reduction to fees and costs requested on the grounds that they were excessive and not reasonably incurred and the hourly rates are too high.

I.

ATTORNEYS’

FEES

a. Hourly Rates

Plaintiffs seek hourly rates of \$595-\$615 for partner JK, \$375 for junior attorney and paralegal/legal assistant rates ranging from \$175-250 per hour (though most time is billed at \$175).

In support of the requested rates, Plaintiffs advance the attorney Declaration of Joseph Kaufman, which lists fourteen (14) cases in which his 2026 rate of \$615 has been approved as reasonable, as well as thirty (30) cases in which his 2023-2025 rate of \$595 was approved as reasonable. (Kaufman Decl. ¶¶ 6-7.)

Plaintiffs also advance the attorney Declaration of Scott A. Sanchez, which lists three (3) cases in which his 2026 hourly rate of \$395 was deemed reasonable and seven (7) cases in which his 2023-2025 hourly rate of \$375 was deemed reasonable. (Sanchez Decl. ¶¶ 18-19.) Sanchez further points out that this court accepted his \$395 hourly rate in awarding sanctions in this case. (Sanchez Decl. ¶ 19.)

Sanchez’s declaration also references the Laffey Matrix, indicating first year associates in high cost of living areas bill an average of \$473 per hour, in contrast to Mr. Sanchez’s billing rate of \$375, which went up to \$395 in 2026, now that he has three years of experience. (Sanchez Decl. ¶

17; Kaufman Decl. ¶ 13.)

In opposition, Honda urges the Court to disregard Plaintiffs' counsels' statements about what other consumer protection attorneys charge and their own self-serving declarations and to use a more objective metric of prevailing market rates instead.

But Plaintiffs have provided numerous examples of Courts in California upholding their requested rates, as well as the Laffey Matrix for objective comparison. By contrast, Honda has not supplied the Court with any such objective metric data to support the rate reductions it requests.

Therefore, the Court does not implement any across-the-board hourly rate reductions.

b. Reasonableness of Time Entries

Mr. Sanchez's Time Spent on
Administrative Tasks

Defendant first challenges a total of 8.3 hours Mr. Sanchez purportedly billed to assemble exhibits, format pages, bates label documents, and complete binders, which are tasks better suited to a law clerk or paralegal.

Defendant references Exhibit B to the Michel declaration at entries 176, 193, 201, 299, 370, 424, 427, 431, and 434. Upon review, the Court agrees that 7.8 hours of the identified entries were administrative tasks, better billed by a paralegal. As such, the Court reduces the 0.4 hours billed prior to 2026 from \$375 to the then-paralegal rate of \$175, for a reduction of \$80, and the 7.4 hours billed in 2026 from \$395 to the current paralegal rate of \$195, for a reduction of \$1,480.

However, the Court finds entry 299, which involved drafting and serving objections to a notice of deposition is appropriately a junior associate task. As such, the Court does not adjust the 0.5 hours of time billed to these tasks.

In total, the Court reduces
Mr. Sanchez fees by \$1,560 for time billed for administrative tasks.

Duplicate Entries

Defendant next challenges

\$12,357 billed to duplicative entries, however, the Court cannot easily discern which entries are being challenged as duplicative. The opposition references Exhibit B to the Michel declaration at entries 5, 8, 12, 19, 27, 29, 44, etc. But there are no entries numbered 5, 12, 27, or 29 on that spreadsheet. It starts at line # 8 and skips over various lines, including 12, 27, and 29.

Further, upon review of the
line items that are represented in the spreadsheet, the Court does not find Honda's characterization of the time to be accurate.

For example, for Line 8, Mr. Sanchez billed a total of 3 hours to reviewing/analyzing repair orders, vehicle evaluation records, client payment history per the sales contract, identifying repeat defects across multiple repair visits, calculating the cumulative days the vehicle was out of service, prelitigation communications with Honda, legal research, and litigation strategy. This entry does not involve a review of work done by other attorneys.

Similarly, line 19 involves a
review of Honda's answer to the complaint and taking notes on arguments challenging Honda's various affirmative defenses. And line 44 involves a review of Honda's objections to Plaintiff's PMQ deposition notice. Again, these entries do not involve a duplicative review of work done by other attorneys at Plaintiff's firm.

Therefore,
Defendant has not adequately substantiated any reduction due to duplicative entries.

Motion for Attorneys' Fees

Defendant
next challenges \$1,777.50, representing four (4) hours of Mr. Sanchez's time requested in anticipation of replying to Honda's opposition and attending the

hearing and requests that the time be reduced by two (2) hours.

In
reply, Mr. Sanchez indicates he actually spent more than nine (9) hours
reviewing Honda's opposition and reply.

While
the Court would ordinarily find four and a half (4.5) hours excessive to review
an opposition and draft a reply in an ordinary Song-Beverly motion for
attorneys' fees, the Court agrees that Honda has vigorously opposed the instant
motion, requiring Plaintiffs' counsel to expend longer than what would normally
be required.

As
such, the Court does not find any reductions warranted for the estimated time
requested to review the opposition, draft the reply, and attend the hearing on
the fee motion.

Fees
Incurred in Connection with Plaintiff's Motion to Compel

Defendant
next argues that the 9.2 hours billed between February 9, 2026 and April 13,
2026 to draft, oppose, reply, and appear for/attend Plaintiffs' successful
Motion to Compel the deposition of Kentaro Ogawa should be subtracted from the
fee award here, because attorney time incurred in connection with that motion
was already awarded as monetary sanctions.

The
Court agrees, and Plaintiffs have not raised any arguments to the contrary in
reply. Therefore, the Court reduces the
fee request by \$3,634.

In
grand total, the Court reduces the fee request by \$5,194.00.

c. Multiplier

Factors to be considered in applying a multiplier include "the quality
of the representation, the novelty and complexity of the issues, the results

obtained, and the contingent risk presented.”

(Consumer Privacy Cases (2009) 175 Cal.App.4th 545, 556.)

Plaintiffs request a lodestar multiplier of 1.2 to account for the “exceptional” settlement in Plaintiff’s favor and the inherent contingent risk in taking on this case.

Defendants argue that no multiplier is warranted in a garden variety lemon law case like this. Although the litigation tactics may have been more contentious in this case than in an ordinary lemon law case, that additional time is adequately reflected in the fee award. The Court does not find that an additional multiplier is warranted here.

II.

COSTS

Plaintiffs seek \$16,249.44 in costs, comprised of \$1,746.22 in filing and motion fees, \$2,391.15 in deposition costs, \$143.50 for service of process, and \$11,968.57 in “other” fees, consisting primarily of fees incurred for transcripts, delivery of courtesy copies to the court, attorney appearance services, and deposition costs.

Defendant has not challenged Plaintiff’s claimed costs, therefore the Court awards Plaintiff’s requested costs in full.

CONCLUSION AND ORDER

Therefore,
the Court grants in part Plaintiff’s motion for attorneys’ fees and costs in the amount of \$118,566.94 representing attorneys’ fees reasonably incurred in the amount of \$102,317.50 and costs in the amount of \$16,249.44.

Further,
the Court will enter the proposed Order lodged on August 3, 2026 in conformity with the ruling.

Plaintiff
shall provide notice of the Court’s ruling/Order, and file the notice with a proof of service forthwith.

DATED: August 25, 2026 ____/s/____

Michael
E. Whitaker

Judge
of the Superior Court